

		client by mail at the client's last known address. The remainder of the motion papers were served by electronic means. No later than nine (9) court days before the continued hearing, Moving Counsel shall file and serve proof of service establishing service by non-electronic means of all moving papers on Client (Code Civ. Proc., § 1010.6(c)(3); Rule 2.251(b)(1)(B)); and an amended counsel declaration showing reasonable efforts to locate the corporate client's current mailing address information. Client The M General Construction may file a response or opposition no later than five (5) court days before the continued hearing. Moving Counsel shall provide notice of this ruling and continued hearing date on the client.
11	Haus of Design HOD, LLC vs. TLB, LLC	TENTATIVE RULING: For the reasons set forth below, the application for writ of possession by Plaintiff Haus of Design HOD, LLC is DENIED without prejudice. Plaintiff seeks a writ of possession from Defendant TLB, LLC of furniture, decorative items, lighting, rugs, artwork, display equipment, and related accessories/personal property under two Staging Services Agreements between the parties. The proofs of service on the application for writ of possession, however, show that Plaintiff served the moving papers for the application for writ of possession on Defendant by electronic mail to Ashok Desai at alan@desaicompany.com and admin@desaicompany.com. (ROA # 22). Code of Civil Procedure § 512.030, however, provides: (a) Prior to the hearing required by subdivision (a) of Section 512.020, the defendant shall be served with all of the following: (1) A copy of the summons and complaint. (2) A Notice of Application and Hearing. (3) A copy of the application and any affidavit in support thereof. (b) If the defendant has not appeared in the action, and a writ, notice, order, or other paper is required to be personally served on the defendant under this title, service shall be made in the

		same manner as a summons is served under Chapter 4 (commencing with Section 413.10) of Title 5. Here, Defendant has not appeared in the action. Accordingly, Defendant must be served with the moving papers in the same manner as a summons. Serving by electronic means is not an authorized manner of serving a summons. For this reason, the motion is DENIED without prejudice. Plaintiff to give notice.
12	Young vs. Gunlei Corporation	TENTATIVE RULING: <u>Motion to Strike</u> Plaintiffs and Cross-Defendants William and Jennifer Young move to strike the Cross-Complaint filed by Cross-Complainants Gunlei Corporation and Egreen Transport Corporation. For the following reasons, the motion is DENIED. Plaintiffs’ request for judicial notice is GRANTED. Code Civ. Proc. § 436 provides as follows: The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.) A corporation that has been suspended or forfeited for failure to pay its taxes lacks capacity during the period of suspension or forfeiture to prosecute or defend any lawsuit. (<i>See</i>, Rev. & Tax. Code § 23301; Corp. Code § 2205; <i>Casiopea Bovet, LLC v. Chiang</i> (2017) 12 Cal.App.5th 656, 662, citation omitted [“A corporation that has had its powers suspended ‘lacks the legal capacity to prosecute or defend a civil action during its suspension.’ . . . Nor, during the period of